

Monopolies have too much **power** over the market and damage trade, but **inventors** need some way of **protecting their intellectual property**.

Monopolies should be banned, and **useful inventions** should be granted **exclusive rights for a limited time**.

This will motivate **clever minds** to create more **new and ingenious inventions**.

And so the statute provided that any creator whose invention was turned into a practical device should have the sole right over that invention for up to 10 years. Anyone who made an illegal copy would be compelled to destroy it and pay a fine of 100 ducats. This would be about \$15,000 in today's terms, so the statute was clearly meant to be taken seriously.

With this legislation, Venice became the first state to develop a continuous and consistent system for the protection of inventions. For the first time, there was a proper legal framework of intellectual property rights. In other words, knowledge could be “owned,” giving people an incentive to develop the skills and techniques to invent—confident that if their work was successful, their right to earn money from it would be guaranteed.

This argument is at the heart of capitalist thinking. It assumes that without the potential rewards of financial gain, people will not bother to create or invent. The strategy clearly worked in Venice: by the end of the 15th century, the city's commercial prominence was unmatched in Europe. It had become a center for technological development and stood at the hub of a trading empire stretching across the Mediterranean Sea

and as far as India and Central Asia. When French writer and diplomat Phillipe de Commynes visited Venice in 1495, he declared it to be “the most triumphant city I have ever seen.”

Venice in demand

If the number of patents granted is anything to go by, the Venetian statute was a great success. In the period 1474–1600, 621 patents were awarded, an average of five each year. Another 605 were granted in the following century.

Venetian products were very much in demand, and as Venetian merchants and artisans moved

away from the city and settled elsewhere in Europe, they took the idea of patents with them, eager to protect their products from being copied, which would dilute their brand and profits. In 1551, for example, a Venetian glassmaker named Theseo Mutio was the recipient of the first patent awarded in France, for making glass “according to the manner of Venice.” Venetian glassware (produced on the island of Murano) was hugely popular, and Venetian glassmakers in Antwerp and Germany were also awarded early patents. In 1565, Italian engineer Jacopo Aconcio was awarded the first patent to be granted for innovation in England—for machines powered by water wheels (see box, top right).

Exclusive rights

In England, the idea of patents on inventions was extended to include exclusive rights to sell particular products or skills—in other words, monopolies. As early as the 14th century, licenses called “letters of protection” had been granted to foreign craftsmen and inventors to encourage them to come to England. In 1331, John Kempe, a Flemish weaver, had been a beneficiary, and in 1449,



The Barovier Cup was created as a wedding gift in about 1470 by master glassworker Angelo Barovier, who first discovered how to produce the clear glass that made Murano famous.